HEADNOTE

> *"1- A submission, although lodged in English, shall be declared admissible if it was not returned by the Registry as provided for by the RoP, which does not envisage any other consequence in such situation. In accordance with R. 7.1 RoP, it is for the Court to decide on a case-by-case basis whether an application pursuant to R. 323 lodged in a different language is to be rejected. 2- When deciding on a request to change the language of the proceedings to the language in which the patent was granted, all relevant circumstances relating to the case and to the position of the parties must be taken into account. If the balance of interests is equal , such as when both parties are international companies with significant internal resources , the position of the defendant is the decisive factor. In contrast to the language skills of the representatives of the parties, the ability for the managing directors or their equivalents on both sides to understand the language of the proceedings is a relevant consideration."*

COURT
Local Division in Düsseldorf

PROCEEDINGS
Procedural order

PATENT
EP3065184

TRENCH PROCESS AND STRUCTURE FOR BACKSIDE CONTACT SOLAR CELLS WITH POLYSILICON DOPED REGIONS

KEYWORDS

Change of the language of the proceedings

Rule 7 Language of written pleadings and written evidence

SUMMARY
The Local Division in Düsseldorf issued a procedural order. The patent at issue relates to trench process and structure for backside contact solar cells with polysilicon doped regions. According to the headnotes of the decision, a submission lodged in English remains admissible if the Registry does not return it. The Court must decide on a case-by-case basis whether applications in a different language should be rejected. Further, when considering requests to change the language of proceedings, the Court must weigh all relevant circumstances. This means the Court must also consider the parties' positions carefully. If the balance of interests is equal between parties, such as international companies with substantial resources, the defendant's position becomes decisive. In particular, the language abilities of company directors or equivalents are relevant considerations. The language skills of their legal representatives carry less weight in this assessment.